

## 23STCP00841 23STCP00841

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-07-14

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Case Number: 23STCP00841 Hearing Date: July 14, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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TIMOTHY RYAN, M.D.,

Petitioner,

vs.

COUNTY

OF LOS ANGELES,

Respondent.

Case No.:

23STCP00841

Hearing Date:

July 14, 2026

[TENTATIVE] ORDER RE:

## MOTION FOR ATTORNEY FEES

Petitioner Timothy Ryan, M.D (“Petitioner” or “Ryan”) moves for attorney fees and costs under Government Code section 7923.115, subdivision (a), and the January 16, 2026 “Second Amended Stipulation and Order Re: Timing for Petitioner’s Attorney’s Fees and Costs.”

The motion is granted in reduced amount.

I.

### Background

Petitioner filed his verified Petition for Declaratory Relief and Writ of Mandate on March 16, 2023. The Petition asserts a single cause of action under the California Public Records Act (“CPRA”) (Gov. Code § 7920.000 et seq.).

Petitioner alleges that from 2013 to 2018, he was employed at Harbor-UCLA Medical Center (“Harbor-UCLA”) as a vascular surgeon. Petitioner alleges that Respondent County of Los Angeles (“Respondent” or “County”) failed to provide timely and lawful determinations on multiple CPRA requests and unlawfully withheld public records relating to three subjects: (1) records concerning allegations of misconduct and the suspension of a former department chair at Harbor-UCLA Medical Center; (2) records concerning County investigations related to Petitioner’s prior whistleblower complaints, including matters for which a jury previously found the County had retaliated against him; and (3) records concerning alleged diversion or theft of controlled substances at Harbor-UCLA that were discussed by the hospital’s Medical Executive Committee in 2016.

Petitioner alleges that he made several CPRA requests seeking documents on these topics and that the County repeatedly invoked extensions, refused to confirm the existence of certain records, and ultimately denied the requests based on various claimed exemptions. He further alleges that the County did not provide timely determinations as required by statute, did not assist him in identifying or obtaining responsive records, and improperly withheld documents in their entirety. As a result, the Petition seeks a writ compelling disclosure, declaratory relief, and recovery of attorney fees and costs.

On March 28, 2024, the Court held a hearing on the petition and ordered disclosure of certain categories of documents. On October 24, 2024, the Court ordered the County to produce additional documents, after which the Court of Appeal issued a writ regarding privileged records. On February 4, 2025, the Court issued an order consistent with the Court of Appeal's writ, finding no waiver of the attorney-client privilege for certain categories of documents sought by Petitioner.

## II.

### Evidentiary Matters

Respondent objects to portions of the Declaration of Michael F. Ram ("Ram"). Each objection is one or more of lack of personal knowledge, lack of foundation, inadmissible speculation and conclusion, and relevance. Respondent does not object to Ram's expert qualifications. Ram explains that he reviewed the filings in the case and the hours Petitioner's counsel billed. (Ram Decl., ¶¶ 7-12.) Ram's expert opinion on the reasonableness of Petitioner's counsel's billing is therefore relevant, founded expert opinion not requiring personal knowledge. The objections are overruled.

Respondent likewise objects to portions of the Declaration of Thomas R. Burke ("Burke") for lack of personal knowledge, lack of foundation, inadmissible speculation and conclusion, and relevance. Respondent does not object to Burke's expert qualifications. Burke explains that he reviewed the filings in the case and the hours Petitioner's counsel billed. (Burke Decl., ¶¶ 13-16.) Burke's expert opinion on the reasonableness of Petitioner's counsel's billing is therefore relevant, founded expert opinion not requiring personal knowledge. The objections are overruled.

Petitioner objects to portions of the Declaration of Mira Hashmall ("Hashmall"). The objections to testimony on unrelated prior litigation are sustained for irrelevance. This includes paragraphs 2 through 11 (objection nos. 1 through 3), footnote no. 1 (objection no. 4), paragraph 64 (objection no. 7), and Exhibits 1 and 6 (objection nos. 9 and 10). The objection to part of paragraph 63 (objection no. 6) is also sustained for irrelevance. The remaining objections are overruled.

The Court will assign the proper weight to admitted evidence.

III.

#### Petitioner's Motion for Attorney Fees and Costs

On March 18, 2026, Petitioner filed the instant Motion for Attorney's Fees and Costs under the CPRA, seeking \$388,350.50 in attorney fees, \$75,000 in "fees on fees," and \$13,832.82 in costs. Petitioner claims to have obtained multiple court rulings ordering disclosure of records and securing the release of thousands of pages of previously withheld public records since this lawsuit was filed.

It is undisputed that Petitioner is entitled to fees, though the parties dispute the appropriate amounts. The County contends that Petitioner achieved only partial success, that many of the hours billed were excessive, duplicative, block-billed, or devoted to issues on which Petitioner did not prevail, and that substantial portions of the billing are too vague or redacted to evaluate. The County also argues that Petitioner's requested rates are inflated, and that certain claimed costs were unnecessary.

An award of costs and fees is mandatory under the CPRA if the plaintiff prevails. (Gov. Code § 7923.115; Riskin v. Downtown Los Angeles Property Owners Assn. (2022) 76 Cal.App.5th 438, 445; see also Filarsky v. Superior Court (2002) 28 Cal.4th 419, 427.) A plaintiff "prevails" in a CPRA action "when he or she files an action which results in defendant releasing a copy of a previously withheld document." (Riskin, 76 Cal.App.5th at 445.) "An action results in previously withheld documents 'if the lawsuit motivated the defendants to produce the documents.'" (Ibid. [quoting Galbiso v. Orosi Public Utility Dist. (2008) 167 Cal.App.4th 1063, 1085].)

Reasonable attorneys' fees are determined pursuant to the "lodestar" or "touchstone" method. Under this approach, a base amount is calculated from a compilation of time reasonably spent and reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48; Serrano v. Unruh (1982) 32 Cal.3d 621, 639; Meister v. Regents of Univ. of Calif. (1998) 67 Cal.App.4th 437, 446-47.) The lodestar method applies to statutory attorney fee awards unless the underlying statute provides for another method of calculation. (Meister, 67 Cal.App.4th at 448-49.)

The lodestar method vests the

Court with discretion to decide which of the hours expended by the attorneys were “reasonably spent” on the litigation. (Hammond v. Argan (2002) 99 Cal.App.4th 115, 133; Meister, 67 Cal.App.4th at 449.) The predicate of any attorney fee award is the necessity and usefulness of the conduct for which compensation is sought. (Thayer v. Wells Fargo Bank, NA. (2001) 92 Cal.App.4th 819, 846.) The base amount may then be adjusted in light of various factors including, but not limited to, the novelty and difficulty of the questions involved, the skill displayed in presenting them and/or the success achieved. (See e.g., Chavez y. Netflix, Inc. (2008) 162 Cal.App.4th 43, 61; Ketchum v. Moses (2001) 24 Cal. 4th 1122, 1139; Harman v. City and County of San Francisco (2007) 158 Cal.App.4th 407, 425-426.)

#### IV.

##### Analysis

##### 1.

##### Reasonable Attorney Fees

##### The

court employs the “lodestar” analysis when looking to determine the “reasonableness” of an attorney fee award.

The lodestar figure is calculated by multiplying the number of hours reasonably spent by the reasonable market billing rate. (Serrano v. Priest (1977) 20 Cal.3d 25, 48.)

##### a.

##### Hourly Rates

Ryan seeks the attorney fees at the following rates:

(a) \$945

hourly for Karl Olson (“Olson”), senior partner;

(b) \$945

hourly for Therese Cannata (“Cannata”), senior partner;

(c)

\$600 hourly for Zachary Colbeth (“Colbeth”), partner;

(d) \$600

hourly for Aaron Field ("Field"), partner;

(e) \$350

hourly for Irene Lee ("Lee"), senior associate;

(f)

\$300 hourly for Haley Meyer ("Meyer"), associate;

and

(g) \$175

hourly for paralegal time.

(Olson Decl., ¶

21.) Ryan supports the reasonableness of these rates with expert declarations.

(Ram Decl., ¶ 6; Burke Decl., ¶ 4.)

The County, by reference to the

Wolters Kluwer 2023 Real Rate Report, argues that these rates are

outside the reasonable range for attorneys in the Los Angeles and San Francisco markets from firms of less than 51 attorneys. (Opp. at 16; Hashmall Decl., Ex.

10.) Per the 2023 Real Rate Report, partners at firms of 50 or fewer

attorneys charged, at median, \$349 hourly for litigation, while associates

charged \$209. (Hashmall Decl., Ex. 10 at p. 60.) For general liability practice

in San Francisco specifically, the median partner charged \$280 hourly in 2023.

(Hashmall Decl., Ex. 10 at p. 128.)

In reply, Ryan argues the 2023

Real Rate Report does not show rates for attorneys specializing in public access, media, or First Amendment issues.[1]

"The courts repeatedly have

stated that the trial court is in the best position to value the services

rendered by the attorneys in his or her courtroom [citation], and this includes

the determination of the hourly rate that will be used in the lodestar calculus.

[Citation.]" (569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump,

Inc. (2016) 6 Cal.App.5th 426, 436-437.) This determination considers the

complexity of the case, the quality of services provided, and the attorneys'

experience. An award at the rates requested comes with the expectation that the

attorneys work in an efficient manner that reflects the elevated premium paid

for their services. The Court considers this factor in addressing the reasonableness of the hours expended.

The Court finds most of the hourly rates charged here reasonable, except for the senior partner \$945 hourly rate. The senior partner rate is therefore reduced to \$700 per hour.

b.

Hours Expended

Ryan's counsel provided a verified fee bill, which is prima facie evidence that Ryan's listed fees and costs were necessarily incurred. (Colbeth Decl., Ex. FF; Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.)

The County bears the burden of challenging the specific portions of the fee bill it contends are improper or unreasonable. (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence." (Ibid.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Ibid.)

The County submits billing charts highlighting the billing entries it believes should be rejected as unreasonable. (Hashmall Decl., Exs. 7-9.) The Hashmall Declaration provides only a cursory explanation of why the Court should find the fees unreasonable, and fails in the majority of cases to tie the explanations to specific entries. (See Hashmall Decl., ¶¶ 71-74.) The Hashmall Declaration includes supporting legal argument, yet even so, only discusses the fees on pages 15-17 of the 17-page declaration. (Hashmall Decl., ¶¶ 66-74.) Of these pages, only about one page discusses the reasonableness of the hours billed. (Hashmall Decl., ¶¶ 69-71, 73-74.) While the opposition provides a more thorough description of the County's objections, it fails to more particularly tie its objections to the identified billing entries. (Opp. at 11-15.)

The County has the burden to challenge specific items in the fee bill. Therefore, the Court will review only

those entries the County objects to and explains in enough detail for the Court to understand the basis of the objection.

First, the County objects to block-billed entries. The County identifies entries for: (a) 2.8 hours by Field for “[p]repare for and attend additional calls w/ client re: [ . . . ]; further revise response to County based on calls, and finalize and send to County;” (b) 7.8 hours by Field for “[p]repare for and attend meet and confer call w/ opposing counsel and Mr. Colbeth re: disputed issues and correspond re: same. 3.1. Research, analyze, and draft brief listing matters in dispute in light of call, revise and file same. 4.7;” (c) 3.7 hours by Colbeth for “[d]raft and conduct research re status brief; telecon and email correspondence with Dr. Ryan re [ . . . ];” and (d) 11.5 hours by Colbeth for “[p]repare for PRA merits briefing, including preparing outlines and reviewing documents re same; travel to Los Angeles for PRA merits hearing; telecon and email correspondence with Dr. Ryan re [ . . . ].” (Opp. at 15.)

The Court agrees that these identified entries are block-billed. The Court therefore reduces Field’s hours by 10.6, and Colbeth’s by 15.2.

Second, the County objects to redacted time entries. The County identifies entries for (a) 6.8 hours by Colbeth for “[d]raft, edit, revise, conduct research, and finalize preliminary response to County’s appellate writ petition, including incorporating all edits; email correspondence with Dr. Ryan re [ . . . ].” and (b) 0.5 hours by Colbeth for “[r]eview email correspondence from Dr. Ryan re [ . . . ], and review notes from Dr. Ryan re [ . . . ].” (Opp. at 13-14.)

The Court does not find these entries are so unclear as to prevent the Court from determining whether the work was reasonable. These entries show only redactions to the content of communications between Ryan and counsel. These entries are presumptively reasonable, and the County has not met its burden to show otherwise.

Third, the County objects to entries it contends reflect excessive overlap between attorneys. The County identifies two instances, including a privilege log letter for which Colbeth and Field collectively billed 12.9 hours in May and June 2023 and June and July 2024. (Opp. at 12-13.)



The Court is not persuaded this time was unreasonable. The issue of the privilege log remained pending for over a year, and the Court on multiple occasions ordered the parties to meet and confer over the log's production. Therefore, even if the Court accepts, *arguendo*, that the entries show work on the same letter, it is not clear that billing entries for a meet and confer letter relating to the privilege log, entered a year apart, establish duplicative effort.

Fourth, the County objects to excessive daily billing by Field. The County identifies entries for (a) 8.6 hours for "[r]esearch and continue drafting opening brief and associated documents re: writ petition;" (b) 10.9 hours on January 28, 2024 for "[r]eview and pull documents from relevant cases, research and draft opening brief and associated documents re: writ petition;" (c) 7.1 hours on January 28, 2024 for "[r]esearch and draft opening brief and supporting declarations, obtain input and comments from Dr. Ryan re [ . . . ] and implement, and review and pull additional case files and other records supportive of access in case;" and (d) 10.2 hours for "[r]esearch and draft supplemental brief re: scope of search and proposed in camera review and supporting Ryan declaration, work w/ Dr. Ryan to obtain approval of and to file and serve same." (Opp. at 11.)

The Court agrees these entries suggest a failure to exercise billing judgment. Moreover, Ryan does not address this argument. The Court therefore reduces Field's hours by 36.8.

Finally, the County objects to billed travel time, and Ryan does not address this argument. Field billed 34.6 hours for travel time not otherwise reduced above. Colbeth billed 5.9 hours for travel time not otherwise reduced above.

In total, the Court reduces Field's hours by 82 hours from the claimed 367.5 hours (yielding 285.5 hours). The Court reduces Colbeth's hours by 21.1 hours from the claimed 181.1 hours (yielding 160 hours).

c.

Total Lodestar Fees

Based on the foregoing, the total

reasonable fees are:

(a) 19.4

hours at \$700 hourly for Olson, totaling \$13,580;

(b) 8.5

hours at \$700 hourly for Cannata, totaling \$5,950;

(c)

160 hours at \$600 hourly for Colbeth, totaling

\$96,000;

(d) 285.5

hours at \$600 hourly for Field, totaling \$171,300;

(e) 25.9

hours at \$350 hourly for Lee, totaling \$9,065;

(f)

54.7 hours at \$300 hourly for Meyer, totaling

\$16,410; and

(g) 42

hours at \$175 hourly for paralegal time, totaling \$7,350.

Together, the total lodestar

value is \$319,655.

d.

Multiplier

The County argues the total fees

should be reduced for Ryan's limited success.

As the cases cited by both Ryan

and the County show (Mot. at 11-12; Opp. at 9-10; Reply at 2-4), a court may

consider, but is not required to consider, the degree of the petitioner's

success as a factor in determining an award of reasonable attorney fees. "While

the degree of the plaintiff's success in obtaining the objectives of the

litigation is a factor that the trial court may consider in determining an

award of reasonable attorney fees under a fee statute [citations] including the CPRA fee statute [citation], . . . there is no requirement that the trial court make an award of attorney fees in an amount that is commensurate with or in proportion to the degree of success in the CPRA litigation.'” (Pacific Merchant Shipping Assn. v. Board of Pilot Commissioners (2015) 242 Cal.App.4th 1043, 1060 [“Pacific Merchant”], quoting Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1389 [“Bernardi”].) Whether to consider the degree of petitioner’s success is a matter of the trial court’s discretion. (See Pacific Merchant at 1060-61; Bernardi at 1395-98.)

Here, the County’s uncontroverted evidence shows it produced 414 records while withholding over 3,000. (Hashmall Decl., ¶¶ 32, 67.) Stated differently, Ryan was successful in compelling the County to produce approximately one in every eight records.

The County primarily relies on the assertion that Ryan consistently litigated clearly losing positions, including by repeatedly attempting to expand the scope of the requests after the Court required the parties to narrow the issues in a raise-it-or-waive-it briefing. (Opp. at 9-11.)

However, the record shows that at each substantive hearing, Ryan prevailed on significant issues that he raised. At the March 28, 2024 hearing on the petition, the Court ordered the County to produce documents, produce a privilege log, and inform the Court about the existence of other records which the Court might review in camera. At the October 24, 2024 hearing, the Court clarified its ruling in favor of Ryan. At the July 24, 2025 hearing on privilege and scope objections, the Court found that the County failed to meet its burden for attorney-client privilege on multiple issues.

While Ryan did not prevail on several significant issues, the record does not support the County’s characterization of Ryan as widely pursuing meritless positions and seeking to needlessly expand and protract litigation. Accordingly, the Court declines to reduce Ryan’s fees on this basis.

In reply, Ryan seeks an upward multiplier to compensate counsel for taking the case on a contingent risk.

While contingency is a factor the court weighs when considering whether to award a multiplier (Ketchum v. Moses (2001) 24 Cal.4th 1122 at 1132; Serrano v. Priest (1977) 20 Cal.3d 25, 49), it is one of several factors and will not alone generally support an upward multiplier.

Based on its careful review of the record, the Court finds that a lodestar multiplier is not appropriate. Consideration of risk is already included within the lodestar amount. Nothing in the record indicates that the case presented novel issues or that the quality of representation far exceeded the quality of representation that would have been provided by attorneys of comparable skill and experience billing at the same rates.

The Court declines to award a lodestar multiplier.

2.  
Costs

Regarding the County's travel-related costs reduction request, the Court agrees with the County that such travel expenses do not appear to have been reasonably incurred. Ryan's reply does not address County's arguments in this regard, which the Court construes as a tacit admission that County's arguments are correct. (See D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].) The Court will therefore also reduce Ryan's costs request to \$10,781.95.

3.  
Fees on Fees

Ryan seeks \$75,000 for fees on the instant motion. \$75,000 represents about 80 hours at the senior partner rate of \$945 hourly, or 250 hours at the junior associate rate of \$300. This is patently unreasonable for a fee motion where the matter of entitlement is not even at issue. The fees for the instant motion are reduced to \$10,000.

V.  
Conclusion

The motion is GRANTED in the amount of \$329,655 in attorney fees, including fees on fees, and \$10,781.95 in costs.

Date: July 14, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at [email protected] with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

Ryan also argues the 2023 Real Rate Report analyzes data from years before the litigation began. (Opp. at 8-9.) However, the 2023 Real Rate

Report calculates it median values per calendar year. (E.g. Hashmall Decl., Ex. 10 at pp. 60, 128.)